

SANCTIONING PROCEDURE RESOLUTION

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On 29/07/2023, this Agency received a letter from A.A.A. (hereinafter, the complainant), through which a complaint was filed against AUTOCINES 2015, S.L. with NIF B87235255 (hereinafter, AUTOCINES 2015). The reasons for the complaint are as follows:

The complainant states that AUTOCINES 2015, on ***DATE.1, uploaded to its Facebook and Instagram social media profiles ***PROFILE.1 a photograph of their 6-year-old son with a foam torso, taken while he was playing at their facilities, without obtaining the parents' permission, and subsequently used to illustrate promotional articles in two national newspapers (...), where it appeared as the main photo.

Along with the complaint, the following screenshots are provided, among others:

- Publication of ***DATE.1 from the Facebook profile ****PROFILE.1" in which the image of the minor appears from the waist up with the torso full of foam and with the following content: (...).

- News published on ***DATE.2 in the digital version of the newspaper "XXXXX" in which the same image of the minor appears with the following text: "...".

- News published on ***DATE.3 in the digital newspaper "XXXXX" in which the image in question appears with the following text: "...".

- Google search for "(...)" in which a news article from "XXXXX" appears as the first result along with the aforementioned image of the minor.

SECOND: On 21/08/2023, this Agency verified that the publication subject to the complaint was not present on the Instagram profile (***PROFILE.1) of AUTOCINES 2015. Furthermore, the image of the minor had been removed from the news articles mentioned by the complainant and no longer appeared in the Google search conducted.

THIRD: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGD), on 22/08/2023, the complaint was forwarded to AUTOCINES 2015 for analysis and for them to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on 22/08/2023 as evidenced by the receipt that is part of the file.

On 14/09/2023, a response letter was received by this Agency in which the following was stated:

- AUTOCINES 2015, prior to the event where the facts occurred, held discussions with its Data Protection Officer (hereinafter, DPO) to ensure proper privacy by default and by design in coordination with its external DPO. Specifically, the entity in question requested consent forms for, among others, the event of ***PROFILE.1(...); sending the DPO 4 documents.

- AUTOCINES 2015 indicated that "due to the complaint of the current complainant, and based on existing internal protocols," it removed the publication subject to the complaint, informed the parents of the minor, and contacted agencies and media for the withdrawal of the image. It also took disciplinary measures against the employee who, by mistake, provided said image without conducting the necessary checks; as well as organizational measures to prevent the sending of images to the media or publications without the necessary consent, without prejudice to the awareness and sensitivity talks that the entity has been providing to its staff since 2018.

- AUTOCINES 2015 stated that the lawyer of the parents of the affected minor requested financial compensation of €20,000 in exchange for withdrawing the complaint filed with this Agency.

Along with the letter, the following documentation is provided:

- Copy of the emails exchanged between the marketing department of AUTOCINES 2015 (***EMAIL.1) and its DPO (***EMAIL.2). On 14/06/2023, the entity in question requested consent forms from its

DPO, among others, for the event ***PROFILE.1 (...) and, on 23/06/2023, the DPO responded by attaching 4 forms.

- Copy of an email, dated 21/04/2023, sent by the DPO (***EMAIL.2) to the marketing department of AUTOCINES 2015 (***EMAIL.1) in which he attaches the documents they will use for the event that weekend.

- Copy of the following forms:

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- "Registration form activity ***PROFILE.1 XXXXX. Autocines 2015, S.L. Consent form for adults."

- "Registration form for minors XXXXX. Autocines 2015, S.L. Consent form for minors under 14 years (To be filled out by parents/guardians)."

- Example of a completed form "Registration form for minors XXXXX. Autocines 2015, S.L. Consent form for minors under 14 years (To be filled out by parents/guardians)."

- Copy of the informational posters "Recommendations from the AEPD AUTOCINES 2015, S.L."

which, according to the entity being claimed, "provided clear and precise instructions at the entrance of the event so that attendees were aware of the privacy applicable to the event and how the responsible party requests express consent."

- Copy of the emails, dated 03/08/2023, sent by the marketing department of AUTOCINES 2015 (***EMAIL.1) requesting the removal of the image of the minor from their social media and press, after receiving "an email from the father of a child who appears in a photo from Autocine."

- Copy of the document, dated 29/08/2023, in which the employee is informed of the disciplinary offense committed and the corresponding sanction, as well as the meeting notice, dated 30/08/2023, to review the control mechanisms of the entity being claimed.

FOURTH: On 18/09/2023, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the claiming party was admitted for processing.

FIFTH: On 04/06/2024, this Agency verified that the publication subject to the complaint also did not appear on the Facebook social media profile of AUTOCINES 2015 (***PROFILE.1).

SIXTH: According to the report obtained from the AXESOR tool, the entity AUTOCINES 2015, S.L. is a small company established in 2015, with a turnover of 3,482,520 euros in 2022.

SEVENTH: On 19/07/2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the entity being claimed, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for an infringement of Article 6.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), classified under Article 83.5.a) of the GDPR. The aforementioned agreement, in accordance with the rules established in the LPACAP, was notified to AUTOCINES 2015 on 19/07/2024, as evidenced by the acknowledgment of receipt in the file.

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EIGHTH: The aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP, and after the period granted for the submission of allegations had elapsed, it was confirmed that no allegations had been received from AUTOCINES 2015.

Article 64.2.f) of the LPACAP - a provision of which the entity being claimed was informed in the initiation agreement - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the responsibility attributed, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts underlying the accusation, the infringement of

the GDPR attributed to the entity being claimed, and the sanction that could be imposed. Therefore, considering that the entity being claimed has not submitted allegations to the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case a proposal for resolution.

In view of all that has been acted upon, the Spanish Agency for Data Protection considers the following facts proven in this procedure,

PROVEN FACTS

FIRST: AUTOCINES 2015 is the owner of the Facebook social media profile "****PROFILE.1". On ***DATE.1, AUTOCINES 2015 published on that profile the image of a minor, child of the claiming party, from the waist up with the torso covered in foam and with the following text: (...).

SECOND: On ***DATE.2, a news article appeared in the digital version of the newspaper "XXXXX" featuring the same image of the minor with the following text: (...).

THIRD: On ***DATE.3, a news article was published in the digital newspaper "XXXXX" featuring the image in question with the following text: (...).

FOURTH: In one of the documents accompanying the complaint, a Google search for XXXXX is observed in which a news article from XXXXX appears as the first result along with the aforementioned image of the minor.

FIFTH: As of 21/08/2023, the image of the minor subject to the complaint did not appear on the Instagram social media profile (***PROFILE.1) of AUTOCINES 2015. Furthermore, it was removed from the previously mentioned news articles and no longer appeared in the Google search conducted.

SIXTH: On 14/09/2023, in response to the transfer made by this Agency, AUTOCINES 2015 provided, among other things:

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- Copy of an email dated 21/04/2023 sent by the DPO (***EMAIL.2) to the marketing department of AUTOCINES 2015 (***EMAIL.1) in which he attaches the documents that will be used for the event of that weekend XXXXX.

- Copy of an email dated 14/06/2023 sent by the marketing department of AUTOCINES 2015 (***EMAIL.1) to its DPO (***EMAIL.2), with the subject (...) in which the consent forms for the events (...) are requested. Additionally, a copy of the DPO's response email dated 23/06/2023, in which he attaches 5 documents related to the event XXXXX.

- Copy of the forms for "****PROFILE.1":

☐ "Registration form activity ***PROFILE.1. Autocines 2015, S.L. Consent form for adults." Among the consents collected is the following:

o Processing of data by AUTOCINES. I authorize the processing of the personal data provided in this form in accordance with the purposes provided and informed by AUTOCINES. Yes/No.

o Processing, use, and image rights of the participant-holder. Yes/No. I consent to the obtaining and subsequent use of images relating to my person for dissemination in media, on the AUTOCINES website (www.autocines.com), and on social media owned by AUTOCINES (OPTIONAL).

☐ "Registration form for minors XXXXX. Autocines 2015, S.L. Consent form for minors under 14 years (To be filled out by parents/guardians)." Among the consents collected is the following:

o Processing of the minor's data by AUTOCINES. As a parent/guardian or representative, I authorize the processing of the minor's data provided in this form in accordance with the purposes provided and informed by AUTOCINES. Yes/No.

o Obtaining, processing, use, and dissemination - Image rights of the minor. Yes/No. I consent to the obtaining and subsequent use of images of the minor for dissemination in informative media, on the AUTOCINES website (www.autocines.com), and on social media owned by AUTOCINES (OPTIONAL).

☐ Example of a completed form "Registration form for minors XXXXX. Autocines 2015, S.L. Consent

form for minors under 14 years (To be filled out by parents/guardians)."

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- Copy of the informational posters of "***PROFILE.1" that list "Recommendations from the AEPD AUTOCINES 2015, S.L." regarding the images that attendees at the event may obtain as AUTOCINES 2015.

In points five and six it is stated:

"AUTOCINES 2015, S.L. intends to obtain and disseminate images of the event "***PROFILE.1" for which the company has enabled specific forms where information about the processing of data is provided and the relevant express consents are obtained from the holders (Adults) or parents/guardians of the minors who actively participate."

"If you wish for your child to participate in the activity, please request information from our employees regarding the necessary acceptance of the applicable privacy policy in accordance with the provisions of the RGPD and LOPD-GDD regulations."

- Copy of the emails dated 03/08/2023 sent by the marketing department of AUTOCINES 2015 (**EMAIL.1) requesting the removal of the minor's image from their social media and press. The content indicates having received "an email from the father of a child who appears in a photo from Autocine."

- Copy of the letter dated 29/08/2023, in which the employee is informed of the disciplinary infraction committed and the corresponding sanction, as well as the meeting notice dated 30/08/2023 at 11:00-12:00h, with the subject "Review of LPD control mechanisms."

SEVENTH: As of 04/06/2024, this Agency verified that the publication subject to the complaint also did not appear on the Facebook social media profile of AUTOCINES 2015 (**PROFILE.1).

LEGAL GROUNDS

I

Competence and procedure

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR, and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, and the provisions

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regulatory provisions issued in its development and, insofar as they do not contradict them, with a subsidiary character, by the general rules on administrative procedures."

II

Preliminary Issues

Article 4.1 of the GDPR defines personal data as "any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more specific elements of the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person."

In turn, paragraph 2 of the same provision defines data processing as "any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval,

consultation, use, communication by transmission, dissemination or any other form of enabling access, alignment, combination, restriction, erasure, or destruction;”

Finally, paragraph 7 defines the data controller or controller as “the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing; where the law of the Union or of the Member States determines the purposes and means of processing, the controller or the specific criteria for its designation may be established by the law of the Union or of the Member States;”

In the present case, according to the provisions of Articles 4.1 and 4.2 of the GDPR, there is evidence of the processing of personal data, since AUTOCINES 2015 published on its Facebook and Instagram social media profiles (**PROFILE.1) the image of a minor aged 6, child of the claimant.

Furthermore, AUTOCINES 2015 carries out this activity in its capacity as data controller, as it is the one who determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR.

III

Lawfulness of the processing of personal data

The principles governing the processing are enumerated in Article 5 of the GDPR. In this regard, paragraph 1 letter a) states that: “Personal data shall be:

a) processed lawfully, fairly, and in a transparent manner in relation to the data subject (lawfulness, fairness, and transparency); (...)”

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The principle of lawfulness is primarily regulated in Article 6 of the GDPR. The circumstances under which the processing of personal data may be considered lawful are enumerated in Article 6.1 of the GDPR:

1. Processing shall be lawful only if at least one of the following conditions is met:

a) the data subject has given consent to the processing of their personal data for one or more specific purposes;

b) the processing is necessary for the performance of a contract to which the data subject is a party or for the implementation of pre-contractual measures at the request of the data subject;

c) the processing is necessary for compliance with a legal obligation to which the controller is subject;

d) the processing is necessary to protect the vital interests of the data subject or of another natural person;

e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;

f) the processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in letter f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks.”

In this regard, Recital 40 of the GDPR states that “For processing to be lawful, personal data must be processed with the consent of the data subject or on some other legitimate basis laid down by law, whether in this Regulation or under other Union or Member State law to which this Regulation relates, including the necessity of complying with a legal obligation to which the controller is subject or the necessity of performing a contract to which the data subject is party or for the taking of steps at the request of the data subject prior to entering into a contract.”

Upon reviewing the documentation in the administrative file, on 30/06/2023, AUTOCINES 2015 published on its Facebook social media profile (**PROFILE.1) the image of a minor aged 6, child of the claimant, in which the face of the minor and his torso with foam were clearly visible. However, it has not been confirmed that the image in question was also published that same day on AUTOCINES

2015's Instagram social media profile, as indicated in the complaint.

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In any case, the legal basis that supports the processing of personal data related to the obtaining and use of images by AUTOCINES 2015 is the consent granted by the data subjects. Specifically, and taking into account the circumstances of the present case, the "Minor Registration Form XXXXX. Autocines 2015, S.L. Consent Form for Minors Under 14 Years (To be filled out by parents/guardians)" includes, among other things, consent for the "obtaining, processing, use, and dissemination - Image rights of the minor. Yes/No. I consent to the obtaining and subsequent use of images of the minor for dissemination in informational media, on the AUTOCINES website (www.autocines.com), and on social media owned by AUTOCINES (OPTIONAL)."

For its part, AUTOCINES 2015 acknowledged in its response to the transfer that it had published the image of the minor on its social media without the express consent of the parents, proceeding to remove it, as this Agency has been able to verify. Thus, the entity in question was processing the image of the minor without any legal basis until the time of its removal.

Consequently, in accordance with the evidence available at this moment of resolution of the sanctioning procedure, it is considered that the known facts constitute an infringement, attributable to AUTOCINES 2015, for violation of Article 6.1 of the GDPR.

IV

Classification and qualification of the infringement of Article 6.1 of the GDPR

The aforementioned infringement of Article 6.1 of the GDPR constitutes the commission of the infringement classified in Article 83.5 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" states:

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% at most of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)"

For the purposes of the statute of limitations for infringements, the infringement attributed prescribes after three years, in accordance with Article 72 of the LOPDGDD, which classifies the following conduct as very serious:

"1. According to what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall prescribe after three years, which imply a substantial violation of the articles mentioned therein and, in particular, the following:

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b) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679 being met; (...)"

V

Sanction for the infringement of Article 6 of the GDPR

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment of resolution of the sanctioning procedure, it is considered appropriate to graduate the sanction to be imposed according to the following criteria established in Article 83.2 of the GDPR:

- The nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of affected data subjects and the level of damage and harm they have suffered (paragraph a). The publication of the image of the minor aged 6 by AUTOCINES 2015 implies the possibility of immediate and wide dissemination of the content, considering the large number of followers it has on its social media.
- Any measures taken by the data controller or processor to mitigate the damage and harm suffered by the data subjects (paragraph c). AUTOCINES 2015, before this Agency made the transfer of the complaint, sent several emails on 03/08/2023 to have the image of the minor removed from its social media and from news published in the press; it has been verified that it was removed. Furthermore, it is considered appropriate to graduate the sanction to be imposed according to the following criteria established in paragraph 2 of Article 76 "Sanctions and corrective measures" of the LOPDGDD:
- The link of the infringer's activity with the carrying out of personal data processing (paragraph b). AUTOCINES 2015 is an entity whose activity involves continuous processing of personal data, such as images.
- The impact on the rights of minors (paragraph f). AUTOCINES 2015 processed personal data belonging to a minor without the consent of their parents, so, given their special vulnerability, it can be considered that an impact on their right to personal data protection would have particularly significant implications and consequences.

The balance of the circumstances considered, regarding the infringement committed by violating what is established in Article 6.1 of the GDPR, allows for the imposition of an administrative fine of 5,000 euros (five thousand euros).

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Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on AUTOCINES 2015, S.L., with NIF B87235255, for an infringement of Article 6.1 of the GDPR, classified under Article 83.5.a) of the GDPR, a fine of €5,000 (five thousand euros).

SECOND: TO NOTIFY this resolution to AUTOCINES 2015, S.L., with NIF B87235255.

THIRD: This resolution shall be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right. The sanctioned party is warned that they must pay the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of the LPACAP, within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No. IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: XXXXXXXXXXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A.

Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for making the voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested

parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not become aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension will be considered terminated.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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